

3.	26CV0723	JONATHAN EFRIN GALLEGOS VS. PARK PLACE FINANCE, LLC ET AL
MOTION TO EXPUNGE LIS PENDENS / DEMURRER		

Before the Court are two motions: 1) Motion to Expunge Lis Pendens and Request for Attorney's Fees and Costs; and 2) Demurrer.

MOTION TO EXPUNGE LIS PENDENS

This matter was continued from August 14, 2026. The tentative ruling issued on August 14, 2026, remains in effect.

DEMURRER

On June 25, 2026, Defendant, Tahoe LLC ("Defendant"), filed a Demurrer to Plaintiff's First Amended Complaint. The Proof of Service was filed on the same date indicating Plaintiff, Valentin Razumovsky, and Maxton Builders, Inc. were served. No Proof of Service is on file indicating all other co-defendants were served.

California Code of Civil Procedure § 1005(b) requires that all moving and supporting papers shall be served and filed at least 16 court days before the hearing, which includes service on counsel for all parties who have appeared in the action, whether or not the motion seeks relief against such parties. *Alford v. Superior Court* (2003) 29 Cal.4th 1033, 1048 [130 Cal.Rptr.2d 672, 683, 63 P.3d 228, 238].

As Defendant failed to serve all other co-defendants, service is deemed defective. The Court continues the matter to October 30, 2026, to allow for proper service.

TENTATIVE RULING #3:

1. MOTION TO EXPUNGE LIS PENDENS

THE TENTATIVE RULING ISSUED ON AUGUST 14, 2026, REMAINS IN EFFECT

2. DEMURRER

DEFENDANT'S DEMURRER IS CONTINUED TO OCTOBER 30, 2026, AT 8:30 A.M. IN DEPARTMENT NINE TO ALLOW FOR PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.